

## Unknown vs 29.12.2025 Vgkr on 29 December, 2025

HIGH COURT OF ANDHRA PRADESH AT AMARAVATI  
MAIN CASE No.Tr.C.M.P.No.418 of 2025

### PROCEEDING SHEET

| Sl. No. | DATE       | ORDER                       | OFFICE NOTE |
|---------|------------|-----------------------------|-------------|
| 01.     | 29.12.2025 | VGKR, J<br>I.A.No.1 of 2025 |             |

Heard learned counsel for the petitioner.

The averments mentioned in the affidavit filed by the petitioner prima facie show that in view of the matrimonial disputes, the petitioner/wife has been residing separately in her parents' house at Rajahmundry, East Godavari District.

The petitioner/wife pleaded that she has filed a Maintenance Case vide F.C.O.P.No.100 of 2024 on the file of the Judge, Family Court-cum-IX Additional District Judge, Rajahmundry, under Section 125 of Cr.P.C, seeking maintenance, the same is pending for adjudication.

The petitioner/wife further pleaded that to cause inconvenience to her, the respondent/husband herein had filed a

petition vide F.C.O.P.No.1080 of 2023 on the file of the Family Judge-cum-V Additional District Court, Visakhapatnam, under Section 12 (1)(c)(iii) r/w Section 5(1) of the Hindu Marriage Act, 1955, seeking to declare the marriage as null and void and the same is also pending for adjudication.

The averments mentioned in the affidavit of the petitioner/wife prima facie further go to show that the distance between Rajahmundry and Visakhapatnam is more than 200Kms and it is difficult for the petitioner/wife to travel to attend the divorce case proceedings which was filed by the respondent/husband herein before the Court at Visakhapatnam on each and every adjournment without any male assistance and as such, the petitioner is constrained to file the present transfer petition.

Perused the record.

Considering the submissions made by learned counsel for the petitioner and for the reasons mentioned in the accompanying affidavit, there shall be an order of Interim Stay of all further

proceedings including appearance of the petitioner herein i.e., respondent in F.C.O.P.No.1080 of 2023 on the file of the Family Judge-cum-V Additional District Court, Visakhapatnam, till 22.01.2026.

Learned counsel for the petitioner is permitted to take out personal notice to the respondent through Speed Post with Acknowledgment Due and file proof of service in the Registry.

\_\_\_\_\_ VGKR, J Heard learned counsel for the petitioner.

Admit.

Issue notice to the respondent. Post the matter on 22.01.2026.

\_\_\_\_\_ VGKR, J NOTE:

ISSUE C.C. By 30.12.2025 B/o CVD